

JDF 615	Order to Seal Conviction Records	
A. Court Information participant/case info review zone Type: (ex: County or District) _____ Colorado County: _____ Court Address: _____		<i>This box is for court use only.</i>
B. Parties to the Case Plaintiff: People of the State of Colorado vs. Defendant: _____		
		C. Case Details Number: _____ Division: _____ Courtroom: _____

The Court Completes the Rest of this Form

1. Background

The Court has read the Motion and any responses and reviewed the record and evidence presented at a hearing. The Court finds the Defendant is eligible to seal their conviction records. Alternatively, the Court also finds the request is sufficient on its face, no objection has been filed, and that a hearing is not required under C.R.S. § 24-72-704(1)(c)(II).

2. Defendant's Information

- a) Full Name: _____
- b) Birth Date: _____
- c) Mailing Address: _____
City, State, and Zip Code: _____

3. Court Findings

The Court finds that it is appropriate to grant the Motion under C.R.S. §§ 24-72-706, or 707, as follows:

☐ **a) Petty Offense**

The Motion is for the sealing of a petty offense or petty drug offense, and the Defendant's criminal history documents that the Defendant has not been convicted of a criminal offense since the date of the final disposition of all criminal proceedings against the Defendant or since the date of Defendant's release from supervision, whichever is later.

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☐ **b) Eligible Misdemeanor or Felony**

The Motion is for the sealing of an eligible class 1, class 2, or class 3 misdemeanor, a drug misdemeanor, a class 4, class 5, or class 6 felony, or a level 2, 3, or 4 drug felony, and Defendant's criminal history documents that the Defendant has not been convicted of a criminal offense since the date of the final disposition of all criminal proceedings against the Defendant or since the date of Defendant's release from supervision, whichever is later.

☐ **c) Consequences v Public Interest**

The Court finds that the harm to the privacy of the Defendant or the dangers or unwarranted, adverse consequences to the Defendant outweigh the public interest in retaining the records, and the Defendant's criminal history documents that the Defendant has not been convicted of a criminal offense since the date of the final disposition of all criminal proceedings against the Defendant or since the date of Defendant's release from supervision, whichever is later.

☐ **d) Victim of Human Trafficking**

The Court finds by a preponderance of the evidence that the Defendant was trafficked by another person, as defined by C.R.S. §§ 18-3-503 or 504, to perform the offense for which the Defendant was convicted.

4. Court Orders

a) Records Sealed

Criminal records information relating to and contained in:

1) The above-captioned case; and

2) Law Enforcement Agency: _____

Case number: _____

Arrest number: _____

The Records must be sealed immediately, except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist. This order applies to public and private custodians of the records.

b) Case Sealed

The Court directs the Clerk of Court to seal the above-captioned case.

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c) Service

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and every records custodian listed in the Petition.

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d) Other Orders

So Ordered

By: _____
☐ Judge ☐ Magistrate

Dated: _____

signature/date review zone